The Supreme Court today indicated that the criminal prosecution of Mrs Kiran Bedi and Mr Jinder Singh for declining to take oath prior to deposing before the Goswamy–Wadhwa committee would be quashed since the two police officers were not dealt 'even-handedly' by the fact-finding committee.

A three-judge bench comprising Mr Justice E. S. Venkataramiah, Mr Justice M. M. Dutt and Mr Justice N. D. Ojha also hinted that they might ask the police to lead evidence before the committee investigating the incidents starting from handcuffing of a lawyer to a mob attack on the striking lawyers in the Tis Hazari complex on 17 February. In that case, Mrs Bedi, the former DCP (North), who is now deputy director of the Narcotics Control Bureau, will have to come in the witness box in the last.

Arguing for the police officers, Mr G. Ramaswamy contended that the petitioners had not been treated fairly by the two-judge Delhi High Court committee comprising Mr Justice N. N. Goswamy and Mr Justice D. P. Wadhwa. Counsel submitted that Mrs Bedi only declined to take oath because she had no other alternative.

During the hearing, Justice Venkataramiah remarked that from the facts of the case it was very difficult to say that Mrs Bedi did not come under Section 8B of the Commission of Inquiry Act. Under the circumstances, the committee would have to extend provisions of 8B which gives the person covered by it the right to cross-examine the opposite party's witnesses, observed the court. Following an indefinite strike by the lawyers demanding action against the police for its alleged excesses on them, the Centre set up the two-judge committee.

The court also observed that Mrs Bedi was the fittest person to be covered by 8B as her case of being the sole accused was stronger than the case of the three police officers, who had been issued notices under 8B by the committee.

Mr Justice Ojha noted that the Bar Association allegation against Mrs Bedi had a direct bearing both on her conduct as well as on her reputation.

In another significant observation, the judges said that courts (committee) should act in a 'restrained manner' while ordering prosecution of an individual. The committee was at fault in rejecting Mrs Bedi's request to make statement before being asked to depose on oath, the judges noted.

Counsel for the Delhi Bar Association, Mr K. K. Venugopal, after hearing the observations made by the court, pleaded that at this stage the judges should not decide the case. He also contended that the criminal prosecution of the two police officers could not be quashed by the court hearing the petitions challenging the procedure adopted by the committee.

(*The Times of India*, 29 July 1988)

Disagreeing with the counsel's contention, Justice Venkataramiah questioned the commission's haste to recommend Kiran's prosecution and also found fault with it on a few other counts. This observation was sufficient for Mr Justice Goswami to put in his resignation from the commission of inquiry. To this reaction, Justice Venkataramiah expressed his regrets stating in a letter that when the discussions were going on in the Supreme Court during the arguments the members of the commission were never in his mind. They (the three-judge bench of the apex court) were only concerned with the commission's 29 June order that was placed before them.